Related Topic/Issue : Decriminalisation of adultery

Related Article/Schedule : 14, 15 & 21

Supreme Court Judgement: It decriminalised adultery and struck down section 497 of the Indian Penal Code. It declared that this section dealing with the criminalization of adultery, is unconstitutional. It held that this section violates Articles 14, 15 and 21. Further, the court declared that the Section 198(2) of the Code of Criminal Procedure, is also unconstitutional to the extent that it is applicable to the offence of adultery. It observed that when the substantive provision goes, the procedural provision has to pave the same path.

Impact of the Judgement: This judgement has overruled all the previous judgements which had upheld the above Section 497 as constitutionally valid. After this judgement, adultery is no longer a criminal offence attracting up to 5 years' imprisonment. However, it can be considered as a civil wrong and it is a ground for the dissolution of marriage.

Navtej Singh Johar Case (2018)

Name of the Case : Navtej Singh Johar vs. Union of India

Year of Judgement : 2018

Popular Name : —

Related Topic/Issue : Decriminalisation of homosexuality

Related Article/Schedule : 14, 15, 19 & 21

Supreme Court Judgement: It decriminalized homosexuality and partly struck down Section 377 of the Indian Penal Code which criminalized carnal intercourse against the order of nature. It held that this Section is unconstitutional in so far as it criminalizes consensual sexual acts of adults of the same sex. It declared that this Section violates the right to equality under Article 14, the right to non-discrimination under Article 15, the right to freedom of expression under Article 19(1)(a) and the right to live a life of dignity and privacy under Article 21. It said that the LGBT (lesbian, gay, bisexual and transgender) persons are entitled to the same fundamental rights as others.

Impact of the Judgement: This judgement overruled the earlier judgement delivered in the *Suresh Kumar Koushal* case[29] (2013). In this case, the Supreme Court had upheld the constitutional validity of the above Section 377. Before this judgement, the members of the LGBT community were compelled to live a life full of fear of reprisal and persecution. Now, they are legally permitted to engage in consensual sexual conduct. Notably, the provisions of the above Section 377 will continue to govern non-consensual sexual acts against adults, all acts of carnal intercourse against minors and acts of bestiality.

M. Siddiq Case (2019)

Name of the Case : M. Siddiq vs. Mahant Suresh Das

Year of Judgement : 2019